

SPIRE SA

EUR 100,000,000 Fixed Rate Secured Notes due 2041

Indicative termsheet

Introduction: This termsheet relates to the proposed issue by Single Platform Investment Repackaging Entity SA (“**SPIRE**”) of secured notes (the “**Notes**”) pursuant to its secured note programme (the “**Programme**”) and the sale of the Notes by Banco Santander SA (the “**Dealer**”) to a prospective investor. Prospective investors are referred to the base prospectus relating to the Programme dated 31 March 2023 (the “**Base Prospectus**”). The Base Prospectus is available at https://www.spire.com/media/1051/01-spire-2023_base-prospectus_final.pdf.

No offer: This termsheet does not constitute an offer of, or an invitation by or on behalf of SPIRE or the Dealer to subscribe for, or purchase, the Notes.

No retail investors: The Notes are not intended to be offered, sold or otherwise made available to and should not be offered, sold or otherwise made available to any retail investor (being, for these purposes, any retail investor within or outside (i) the European Economic Area or (ii) the United Kingdom).

Indicative status: The terms and conditions described herein are indicative only and are subject to (i) the approval of SPIRE (and SPIRE is under no obligation to issue the Notes as a result of the circulation of this indicative termsheet) and (ii) the terms and conditions set out in the final documentation.

Confidential: This termsheet is confidential and must not be distributed to any person not involved in the proposed transaction without the consent of the Dealer.

Dealer acting as principal: In connection with any future offer, sale and issue of the Notes (noting that this termsheet does not constitute such an offer), the Dealer will act as principal and not as an agent of SPIRE.

Risk factors: A prospective investor must carefully consider the risks associated with any investment in the Notes and should read (i) the section of this termsheet titled “Risk Factors”, (ii) the section of the Base Prospectus titled “Risk Factors” and (iii) any product specific risk factors that may be included in the drawdown documentation relating to the Notes.

Definitions: Capitalised terms used and not defined herein shall have the meaning given to such terms in the section of the Base Prospectus titled “Master Conditions”.

Original Collateral risk from Trade Date: By making an order on the Notes described in this termsheet, prospective investors agree and acknowledge that they will be exposed to the Original Collateral from the Original Collateral Obligor Reference Date given that the occurrence of any event affecting any of the Original Collateral prior to the Issue Date but following the Original Collateral Obligor Reference Date may nevertheless impact the payments that will be due under the Notes which the investor has undertaken to purchase upon issuance.

General terms	
Issuer:	SPIRE, acting in respect of its Compartment 2023-373
Dealer:	Banco Santander, S.A.

General terms	
Series Number:	2023-373
Tranche Number:	1
Aggregate principal amount of Notes:	
– Series:	EUR 100,000,000
– Tranche:	EUR 100,000,000
Issue price:	100 per cent. of the aggregate principal amount of the Notes
Specified Denominations:	EUR 100,000
Trade Date:	17 November 2023
Issue Date:	8 December 2023
Initial Reference Date:	Trade Date of the Notes
Maturity Date:	15 September 2041
Business Day adjustments to Maturity Date:	Following Business Day Convention
	Relevant Business Day centres: TARGET
Listing:	Vienna MTF
Ratings:	Application will be made for the Notes to be rated by Japan Credit Rating Agency, Ltd. There can be no assurance that such application will be successful or that the Notes will be given any rating at all on or after the Issue Date
Standard Terms:	Applicable Please see the section of the Base Prospectus titled “Secondary Market, Swap Counterparty Replacement and Swap Close-Out Quotations” for a summary of the conditions to any secondary market quotation or swap counterparty replacement quotation being provided by a Programme Dealer.
Noteholder U.S. representation letter	Not Applicable

Mortgaged Property		
Original Collateral:	Applicable EUR 100,000,000 in principal amount of the asset identified below	
Original Collateral Obligor(s):	Original Collateral Obligor - Issuer:	Republic of Italy
	Original Collateral Obligor-Guarantor:	Not Applicable
Asset:	ISIN:	IT0004545890
	Coupon:	2.55% Act/Act

Mortgaged Property		
		PRINCIPAL & CPN LINKED TO CPTFEMU
	Coupon frequency:	Semi-Annual
	Maturity:	15 September 2041
	Currency:	EUR
	Governing Law:	Italian Law
	Senior/Subordinated:	Senior
Original Collateral Obligor Reference Date:	Trade Date of the Notes	
Purchase price for Original Collateral:	137.193% (dirty price)	
Substitution of Original Collateral:	Not Applicable	
Swap Agreement:	Applicable Please see the section of the Base Prospectus titled "The Swap Agreement" for a summary of the provisions of the Swap Agreement.	
Swap Counterparty:	Banco Santander, S.A.	
Swap Guarantor:	Not Applicable	
Credit Support Annex:	Applicable - Payable by Issuer and Swap Counterparty, see Appendix below	
CSA Collateral Exchange	Not Applicable	
Replacement Swap Counterparty Mechanics:	Applicable Please see the section of the Base Prospectus titled "Secondary Market, Swap Counterparty Replacement and Swap Close-Out Quotations" for a summary of the conditions to any swap counterparty replacement quotation being provided.	
Repo Agreement:	Not Applicable	
SL Agreement:	Not Applicable	
Security:	As per Master Conditions	
Liquidation:	As per Master Conditions	
Liquidation Period Cut-off:	10 Reference Business Days	
Application of Available Proceeds:	As per Master Conditions	
U.S. Withholding Note/U.S. tax form collection required:	No	

Interest	
Interest Basis:	Fixed rate
Calculation Amount:	EUR 100,000
Interest Commencement Date:	Issue Date
Rate of Interest:	5.74 per cent. per annum payable annually in arrear
Reference Rate Trade Date:	Trade Date of the Notes
Linear Interpolation:	Not Applicable
Margin(s):	Not Applicable
Interest Payment Dates:	15 September in each year, with the first such date being 15 September 2024 (short first coupon) and the last such date being the Maturity Date
Business Day adjustments to Interest Payment Dates:	Following Business Day Convention
	Relevant Business Day centres: TARGET
Interest Period End Dates:	15 September in each year, with the first such date being 15 September 2024 and the last such date being the Maturity Date
Business Day adjustments to Interest Period End Dates:	Following
	Relevant Business Day centres: TARGET
Interest Determination Date:	As defined in the Master Conditions
Day Count Fraction:	30/360

Redemption	
Redemption/Payment Basis:	Redemption at Final Redemption Amount
Final Redemption Amount of each Note:	100 per cent. of its Specified Denomination
Early Redemption Amount of each Note:	As defined in the Master Conditions
Issuer Call:	Not Applicable
Noteholder Early Redemption Option:	Not Applicable
Relevant Regulatory Law Reference Date:	Trade Date of the Notes

Other parties	
Trustee:	HSBC Corporate Trustee Company (UK) Limited
Custodian:	HSBC Bank plc

Other parties	
Calculation Agent:	Banco Santander, S.A.
Disposal Agent:	Banco Santander, S.A.
Vendor:	Banco Santander, S.A.

Other terms	
Governing law:	English law
ISIN:	XS2725067362
Common Code:	272506736
CFI:	DTFXFB
FISN:	SPIRE/5.74 MTN 20410915
Reference Business Day:	TARGET
Form of Notes:	Bearer
Applicable TEFRA exemption:	TEFRA D
Product Governance:	The target market assessment has led to the conclusion that (i) the target market for the Notes is “eligible counterparties” and “professional clients” only, each as defined in [the FCA Handbook Conduct of Business Sourcebook and MiFID II and (ii) all channels for distribution of the Notes to eligible counterparties and professional clients are appropriate

Risk factors

The Notes: The Notes are complex instruments that involve substantial risks and are suitable only for sophisticated investors that:

- (i) have sufficient knowledge and experience to make a meaningful evaluation of the Notes, the merits and risks of investing in the Notes (including, without limitation, the tax, accounting, credit, legal, regulatory and financial implications for them of such an investment) and the information contained or incorporated by reference in the Base Prospectus or any applicable supplement;
- (ii) have considered the suitability of the Notes in light of their own circumstances and financial condition;
- (iii) have access to, and knowledge of, appropriate analytical tools to evaluate, in the context of their particular financial situation, an investment in the Notes and the impact the Notes will have on their overall investment portfolio;
- (iv) understand thoroughly the terms of the Notes and are familiar with the behaviour of any relevant indices and financial markets; [and]
- (v) [understand that any Reference Rate associated or used in connection with the Notes (as relevant) may change, cease to be published or be in customary market usage, become unavailable, have its use restricted or become calculated by a different methodology, and that, as a result (a) such Reference Rate may cease to be appropriate during the lifetime of the Notes and (b) amendments may be required to the Notes to account for the change or cessation of such Reference Rate; and]
- (vi) are able to evaluate (either alone or with the help of a financial adviser) possible scenarios for economic, interest rate and other factors that may affect their investment and their ability to bear the applicable risks.

Owing to the structured nature of the Notes, their price may be more volatile than that of non-structured securities.

Investors: Each prospective investor in the Notes should have sufficient financial resources and liquidity to bear all of the risks of an investment in the Notes, including where principal and interest may reduce as a result of the occurrence of different events whether related to the creditworthiness of any entity or otherwise or changes in particular rates, prices, values or indices, or where the currency for principal or interest payments is different from the prospective investor's currency.

Investment activities of certain investors are subject to investment laws and regulations, or review or regulation by certain authorities. Each prospective investor should therefore consult its professional advisers to determine whether and to what extent (i) the Notes are a legal investment for it and/or (ii) other restrictions apply to its purchase of any Notes. Financial institutions should consult their professional advisers or the appropriate regulators to determine the appropriate treatment of the Notes under any applicable risk-based capital or similar rules.

Each prospective investor should consult its own tax advisers in order to understand fully the tax implications specific to an investment in the Notes.

No fiduciary role: None of the Issuer, the Dealer or any of the other Transaction Parties or any of their respective affiliates is acting as an investment adviser or as an adviser in any other capacity, and none of them (other than the Trustee to the extent set out in the Trust Deed) assumes any fiduciary obligation to any purchaser of the Notes or any other party, including the Issuer.

None of the Issuer, the Dealer or any of the other Transaction Parties assumes any responsibility for (i) conducting or failing to conduct any investigation into the business, financial condition, prospects, creditworthiness, status and/or affairs of any issuer or obligor of any Collateral or the terms thereof or of any

Swap Counterparty or Swap Guarantor or the terms of the relevant Swap Agreement, of any Repo Counterparty or the terms of the relevant Repo Agreement or of any SL Counterparty or the terms of the relevant SL Agreement or (ii) monitoring any such issuer or obligor of any Collateral, any Swap Counterparty or any Swap Guarantor, any Repo Counterparty or any SL Counterparty during the term of the Notes.

Investors may not rely on the views of the Issuer, the Dealer or any of the other Transaction Parties for any information in relation to any person.

No reliance: A prospective purchaser may not rely on the Issuer, the Dealer or any of the other Transaction Parties or any of their respective affiliates in connection with its determination as to the legality of its acquisition of the Notes or as to any of the other matters referred to above.

Disclaimer and additional notes

[SPIRE Directors: By purchasing the Notes, the noteholder will thereby (i) ratify the selection of each member of the board of directors of SPIRE, as identified in the Base Prospectus or the final documentation and (ii) confirm that such ratification is being made without selection or control by the Dealer or any of its affiliates.]

No distribution: This material is specific to the recipient and must not be distributed to any other person or replicated in any form without the prior written consent of the Dealer.

Disclaimer: No Programme Dealer shall be responsible for the actions or omissions of, any statements made by, or written communications of, any other Programme Dealer or any person acting on behalf of such Programme Dealer. Each Programme Dealer shall only be liable with respect to a series of notes for which it was the arranging dealer or for which it has become the replacement swap counterparty.

Selling restrictions: The Notes referred to in this termsheet may not:

- (i) be offered, sold or otherwise made available to and should not be offered, sold or otherwise made available to any retail investor (and, for the avoidance of doubt, this means any retail investor within or outside (i) the European Economic Area (the “**EEA**”) or (ii) the United Kingdom (the “**UK**”)). For these purposes, a retail investor means any person who is one (or more) of the following:
 - (a) a “retail client” as defined in point (11) of Article 4(1) of Directive 2014/65/EU of the European Parliament and of the Council on markets in financial instruments (as amended, “**MiFID II**”) or a “retail client” as defined in point (8) of Article 2 of Regulation (EU) No 2017/565 as it forms part of “retained EU law”, as defined in the European Union (Withdrawal) Act 2018 (“**EUWA**”);
 - (b) a customer within the meaning of Directive (EU) 2016/97 (as amended) or within the meaning of the provisions of the Financial Services and Markets Act 2000 (“**FSMA**”) and any rules or regulations made under FSMA to implement Directive (EU) 2016/97, in each case, where that customer would not qualify as a professional client as defined in, respectively, point (10) of Article 4(1) of MiFID II and point (8) of Article 2(1) of Regulation (EU) No 600/2014 as it forms part of “retained EU law”, as defined in the EUWA; or
 - (c) not a qualified investor as defined in Regulation (EU) 2017/1129 (the “**Prospectus Regulation**”) or the Prospectus Regulation as it forms part of “retained EU law”, as defined in the EUWA (the “**UK Prospectus Regulation**”).

For these purposes, the expression “offer” includes the communication in any form and by any means of sufficient information on the terms of the offer and the Notes to be offered so as to enable an investor to decide to purchase or subscribe for the Notes.

Consequently no key information document required by Regulation (EU) No 1286/2014 (the “**PRIIPs Regulation**”) or the PRIIPs Regulation as it forms part of “retained EU law”, as defined in the EUWA (the “**UK PRIIPs Regulation**”) for offering or selling the Notes or otherwise making them available to retail investors in the EEA or the UK has been prepared and therefore offering or selling the Notes or otherwise making them available to any retail investor in the EEA or the UK may be unlawful under the PRIIPs Regulation or the UK PRIIPs Regulation.

- (ii) at any time be offered, sold or delivered within the United States or to, or for the account or benefit of, any person who is (a) a U.S. person (as defined in Regulation S under the United States Securities Act of 1933), (b) a U.S. person (as defined in the credit risk retention rules issued under Section 15G of the U.S. Securities Exchange Act of 1934) or (c) not a Non-United States person (as defined in Rule 4.7 under the U.S. Commodity Exchange Act of 1936, but excluding for the purposes of subsection (D) thereof, the exception to the extent that it would apply to persons who are not Non-United States persons).

Appendix
Summary of Credit Support Annex

The summary below relates to the credit support annex ("CSA") to be entered into between the Issuer and the Swap Counterparty with respect to the Swap Agreement.

Base Currency:	Euro	
Eligible Currency:	Euro	
Delivery Cap:	Applicable	
Eligible Credit Support (VM):	Eligible Credit Support (VM) for Swap Counterparty	
	<i>Description:</i>	<i>Valuation Percentage:</i>
	Cash in an Eligible Currency	100%
	The assets or property specified in the indicative terms sheet as forming part of the Original Collateral	As specified in the latest LCH Ltd haircut grid (as updated from time to time). Acceptable Collateral Haircuts LCH Ltd as of the Trade Date: https://www.lch.com/system/files/media_root/Collateral/Acceptable%20Collateral%20Haircuts%20LCH%20Ltd%20Secure%20Area%20Mar%202023.pdf
	Negotiable debt obligations issued by the Government of Austria, Belgium, Denmark, Finland, France, Germany, Ireland, Italy, the Netherlands, Spain, Sweden or Japan.	As specified in the latest LCH Ltd haircut grid (as updated from time to time). Acceptable Collateral Haircuts LCH Ltd as of the Trade Date: https://www.lch.com/system/files/media_root/Collateral/Acceptable%20Collateral%20Haircuts%20LCH%20Ltd%20Secure%20Area%20Mar%202023.pdf
	Eligible Credit Support (VM) for Issuer	

	<i>Description:</i>	<i>Valuation Percentage:</i>
	Cash in an Eligible Currency	100%
	The assets or property specified in this termsheet as forming part of the Original Collateral	As specified in the latest LCH Ltd haircut grid (as updated from time to time). Acceptable Collateral Haircuts LCH Ltd as of the Trade Date: https://www.lch.com/system/files/media_root/Collateral/Acceptable%20Collateral%20Haircuts%20LCH%20Ltd%20Secur%20Area%20Mar%202023.pdf
	Any other asset or property notified by the Swap Counterparty to the Issuer in writing from time to time, provided such assets are available to the Issuer in respect of the relevant Series	Such percentage as is notified by the Swap Counterparty to the Issuer in writing from time to time
Credit Support Eligibility Conditions (VM):	Not Applicable	
Minimum Transfer Amount for Swap Counterparty:	EUR 200,000	
Minimum Transfer Amount for Issuer:	EUR 200,000	
Valuation Date:	Daily	
Valuation Date Location:	In respect of the Issuer and the Swap Counterparty: London, New York, Tokyo and TARGET	
Interest Rate (VM) for cash forming part of the Swap Counterparty's Credit Support Balance (VM):	The Custodian's standard overnight rate (which may be positive or negative) offered for deposits in the relevant currency as of the relevant time as determined by the Custodian	
Interest Rate (VM) for cash forming part of the Issuer's Credit Support Balance (VM):	Such rate as determined by the Swap Counterparty acting in good faith and in a commercially reasonable manner	